BERO TECHNOLOGIES PRIVATE LIMITED

DISPUTE RESOLUTION POLICY

1. Mandatory Internal Grievance Redressal Mechanism

1.1. In strict compliance with Rule 4(4) and Rule 4(5) of the Consumer Protection (E-Commerce) Rules, 2020, and the Digital Personal Data Protection Act, 2023, Bero provides a robust, app-integrated internal grievance redressal mechanism.

1.2. **In-App Requirement:** Before pursuing any external legal remedy, alternative dispute resolution, or arbitration, Users (both Clients and Service Professionals) must formally register their dispute via the Bero in-app help center.

1.3. **Statutory Timelines:** Bero's designated Grievance Officer shall acknowledge the receipt of the complaint within forty-eight (48) hours and shall undertake a mandatory internal resolution attempt, endeavoring to redress the grievance within thirty (30) days from the date of receipt.

1.4. **Escrow Dispute Hold and Refund Authority:** If a complaint regarding service quality, non-completion, or fraud is raised prior to the disbursement of funds from the Escrow Account, Bero reserves the unilateral right to freeze the specific transaction funds pending an internal investigation. Bero retains sole authority to direct the Escrow bank to execute a refund to the Client or a payout to the Service Professional based on the evidentiary review of the dispute.

2. Evidence Submission and Admissibility of Digital Records

2.1. During the internal dispute resolution process, parties are required to submit evidentiary materials, which may include photographic proof of work, chat transcripts, and offline-sync CRDT logs.

2.2. Furthermore, Bero relies heavily on its internal algorithmic logs, including GPS coordinates mapped to the H3 index, timestamps of acceptance, and dynamic pricing metrics.

2.3. **Admissibility under BSA 2023:** Users explicitly agree that Bero's server logs, database records, and transaction histories constitute valid electronic records. Pursuant to Section 63 of the Bharatiya Sakshya Adhiniyam, 2023 (BSA), which supersedes Section 65B of the Indian Evidence Act, these digital ledgers, subject to appropriate hash-value protocols and certification, shall be treated as primary documentary evidence and shall be fully admissible in any subsequent arbitration or judicial proceeding.

3. Binding Arbitration Clause

3.1. If a dispute, controversy, or claim arising out of or relating to these Terms, the breach thereof, or the platform services cannot be resolved through the internal grievance mechanism within the stipulated sixty (60) days, it shall be settled exclusively by binding arbitration.

3.2. Governing Law and Framework: The arbitration shall be governed by the Indian Arbitration and Conciliation Act, 1996 (as amended).

3.3. Seat and Venue: The juridical "Seat" of arbitration shall definitively be **New Delhi, India**, conferring exclusive supervisory jurisdiction to the courts of New Delhi for any interim reliefs under Section 9 of the Act. The "Venue" of the hearings may be conducted virtually via a mutually agreed Online Dispute Resolution (ODR) platform to ensure accessibility.

3.4. Tribunal Composition: The dispute shall be adjudicated by a Sole Arbitrator appointed by mutual consent of the parties. If consensus is not reached within thirty (30) days of the arbitration notice, the appointment shall be made by the High Court of Delhi under Section 11 of the Act.

3.5. Algorithmic and Technical Disputes: Disputes specifically pertaining to the outputs of the Dynamic Pricing Engine or the Bipartite Matching Engine are strictly subject to arbitration. The tribunal is expressly empowered to appoint independent technical experts to assess the algorithmic logic if required.

4. Exemption for Statutory Consumer Rights

4.1. Bero acknowledges contemporary jurisprudence established by the Hon'ble Supreme Court of India, which dictates that consumers cannot be mandatorily compelled into arbitration via pre-dispute agreements if they elect to seek remedies under specific welfare legislation.

4.2. Consequently, if You fall strictly within the definition of a "Consumer" under the Consumer Protection Act, 2019, You retain the right to approach the appropriate District, State, or National Consumer Disputes Redressal Commission. For all other parties, including Service Professionals and commercial entities, the arbitration clause remains strictly mandatory and binding.

5. Class Action Waiver

To the maximum extent permitted by Indian law, You and Bero mutually agree that any proceedings to resolve or litigate any dispute will be conducted solely on an individual basis. Neither You nor Bero will seek to have any dispute heard as a class action, representative action, collective action, or private attorney general action. Furthermore, the appointed arbitrator may not consolidate more than one person's claims and may not otherwise preside over any form of a representative or class proceeding without the express written consent of all parties.